



Republic of the Philippines
Province of Sorsogon
MUNICIPALITY OF PRIETO DIAZ
LGU TIN: 000794065
Official Email Add: sbprietodiaz@gmail.com



Office of the Sangguniang Bayan

EXCERPT FROM THE MINUTES OF THE REGULAR SESSION OF THE 11TH SANGGUNIANG BAYAN OF PRIETO DIAZ, SORSOGON HELD ON JANUARY 20, 2025 AT ITS SESSION HALL

PRESENT:

Hon. Avon D. Domalaon, MPA	Municipal Vice Mayor/Presiding Officer
Hon. Jo Madel D. Domalaon	S. B. Member
Hon. Bienvenido D. Ayo, Jr.	-do-
Hon. Luis Lee E. Espeña, Jr.	-do-
Hon. Alice D. Emano	-do-
Hon. Rodolfo E. Diolata	-do-
Hon. Juan D. Ebid	-do-
Hon. Albert D. Destura	-do-
Hon. Antonio J. Emano, Jr.	LnB Pres. /S. B. Member
Hon. Rene Joseph D. Domasian	PPSK Pres./S.B. Member

ABSENT:

Hon. Joseph H. Yap, Jr.	S. B. Member/ on leave
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RESOLUTION NO. 018-2025

Introduced by the council

A RESOLUTION AUTHORIZING THE MUNICIPAL MAYOR, HON. ROMEO D. DOMASIAN, TO ENTER INTO A MEMORANDUM OF UNDERSTANDING WITH THE DEPARTMENT OF SOCIAL WELFARE AND DEVELOPMENT REGIONAL OFFICE NO. V, REPRESENTED BY ITS REGIONAL DIRECTOR, NORMAN S. LAURIO, FOR THE IMPLEMENTATION OF MILK FEEDING PROGRAM IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON

WHEREAS, the Sangguniang Bayan is in receipt of the said MOU, duly endorsed by the Municipal Mayor, Hon. Romeo Domasian;

WHEREAS, the data from the 8th National Nutrition Survey (2013) conducted by the Food and Nutrition Research institute of the Department of Science and Technology with updates as of 2015 revealed that the prevalence of under and over nutrition among Filipino children has significantly increased compared to its 2008 survey;

WHEREAS RA 11037 otherwise known as the "*Masustansyang Pagkain para sa Batang Pilipino Act of 2018*", mandates the institutionalization of a comprehensive National Feeding Program for undernourished children in public day care, kindergarten, and elementary schools noting the confirmed link between food and nutrition and the capacity of children to develop and learn;

WHEREAS the LGUs provide health and social welfare services to its constituents, which include programs and projects on child and youth welfare, as sanctioned by Republic Act No. 7160 otherwise known as the "Local Government Code of 1991":

WHEREAS, the DSWD-Field Office shall, among others, manage and coordinate/supervise the municipal implementation of the Milk Feeding Program; facilitate the procurement of the good/service for the implementation of the said program. It may identify a procurement mechanism that will be more effective and efficient to implement the program:

- a. Partnership with Philippine Carabao Center (PCC) or National Dairy Authority (NDA) by virtue of a Memorandum of Agreement (MOA) - the DSWD Field Office shall transfer fund to NDA or PCC for the milk feeding of children in LGUs, in accordance with pertinent laws, rules and regulations;

WHEREAS, the LGU of Prieto Diaz shall, among others, prepare and submit the master list of child beneficiaries; identification of / beneficiaries as well as assessment of children with lactose intolerance; ensure availability of clean and well-ventilated storage for the fresh milk that will meet the standards set by the proper authorities; ensure safe delivery of fresh milk to children beneficiaries; implement the actual conduct of milk feeding;

WHEREAS, on motion of Hon. Antonio Emano, Jr., duly seconded by Hon. Juan Ebid;

HEREBY RESOLVED, to authorize the Municipal Mayor, Hon. Romeo D. Domasian, to enter into a Memorandum of Understanding with the Department of Social Welfare and Development Regional Office No. V, represented by its Regional Director, Norman S. Laurio, for the implementation of Milk Feeding Program in the municipality of Prieto Diaz, Sorsogon;

FINALLY RESOLVED, to transmit this resolution to Hon. Romeo D. Domasian, Municipal Mayor; copy furnished its Ms. Betty Arines, MSWDO; and all concerned for their information and appropriate action;

APPROVED UNANIMOUSLY.

I HEREBY CERTIFY TO THE CORRECTNESS OF THE FOREGOING.


BERNADETTE R. ESPEÑA-YAO
Secretary to the Sangguniang Bayan

ATTESTED:


Hon. AVON D. DOMALAON, MPA
Municipal Vice Mayor/ Presiding Officer

MEMORANDUM OF UNDERSTANDING

Know All Persons by These Presents:

This Memorandum of Understanding made and entered into this ____ day of _____, 2025 at _____ between and among:

The **Department of Social Welfare and Development (DSWD) – Field Office V** with office address at Magnolia Street Buraguis, Legazpi City, **Philippines** represented by its Regional Director, **NORMAN S. LAURIO** herein referred to as **DSWD**;

and

The **Municipal Government of PRIETO DIAZ** with office address at Perlas, Prieto Diaz, Sorsogon represented by its Municipal Mayor, **Hon. ROMEO D. DOMASIAN** per **Sangguniang Bayan Resolution No. _____** (*copy attached*), herein referred to as the **LGU**.

WITNESSETH:

WHEREAS it is a declared policy of the State to afford the children utmost protection, best care and proper nutrition at the family and community levels;

WHEREAS, the data from the 8th National Nutrition Survey (2013) conducted by the Food and Nutrition Research Institute of the Department of Science and Technology with updates as of 2015 revealed that the prevalence of under and over nutrition among Filipino children has significantly increased compared to its 2008 survey;

WHEREAS the State in its endeavor to address malnutrition among children enacted Republic Act No. 11037 otherwise known as the "Masustansyang Pagkain para sa Batang Pilipino Act of 2018";

WHEREAS RA 11037 mandates the institutionalization of a comprehensive National Feeding Program for undernourished children in Public Day Care, Kindergarten, and Elementary Schools noting the confirmed link between food and nutrition and the capacity of children to develop and learn;

WHEREAS the DSWD in its mandate to provide social welfare and development programs, particularly through technical assistance and resource augmentation, has been providing community-based nutrition programs and services such as Food for School and Healthy Start Feeding Program in child development centers at the local government units (LGUs); partnership with non-government organizations (NGOs) is employed to promote community participation.

WHEREAS the LGUs provide health and social welfare services to its constituents, which include programs and projects on child and youth welfare, as sanctioned by Republic Act No. 7160 otherwise known as the "Local Government Code of 1991";

WHEREAS in the same law, the barangays are tasked with the maintenance of day-care centers;

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WHEREAS, Section 4(c) of Ra 11037 otherwise known as the Masustansyang Pagkain para sa Batang Pilipino Act, provide that the NGAs shall coordinate with the DA, PCC, NDA and the cooperative Development Authority for the incorporation of fresh milk and fresh milk-based food products in the fortified meals and cycle menu in accordance with RA 8976, otherwise known as the "Philippine Food Fortification Act of 2000;"

WHEREAS, the General Appropriation Act (GAA) FY 2024 provides fund for Milk Supplementation to selected highly urbanized cities nationwide based on Philippine Statistic datas and Food and Nutrition Research Institute data on the underweight rate of children ages 0-5 years old (2015 Philippine Nutrition Facts and Figures);

NOW, THEREFORE, for and in consideration of the foregoing premises, hereinafter set forth, the parties hereto agree:

A. RESPONSIBILITIES OF THE DSWD:

The DSWD-Field Office shall:

Milk Feeding Program

1. Manage and coordinate/supervise the regional/municipal implementation of the Milk Feeding Program;
2. Designate a Focal Person for the Milk feeding Program to provide guidance and technical assistance to the LSWDOs, CDWs/SNP Workers, CDW Federation Officers and other relevant stakeholders in the implementation of the program;
3. Conduct orientation to the LGUs, NGOs and other stakeholders on the objective, mechanics and their responsibilities in the program;
4. Facilitate the procurement of the goods/service for the implementation of the Milk Feeding Program. The Field Office may identify a procurement mechanism that will be more effective and efficient to implement the program:
 - a. Partnership with PCC or NDA by virtue of a Memorandum of Agreement (MOA) the DSWD Field Office shall transfer fund to NDA or PCC for the milk feeding of children in LGUs, in accordance with pertinent laws, rules, and regulations;
 - b. Procurement at the Regional/SWAD level, the FO may opt to procure in accordance with RA No. 9184 otherwise known as the Government Procurement Reform Act or partnering with local dairy farmers for the supply of the fresh milk products;
 - c. Partnership with Sustainable Livelihood Program Association (SLPA) and/or ARBOs;
5. The Field Office, assisted by the National Dairy Authority (NDA) or Philippine Carabao Center (PCC), ensure that all plans, agreements, systems and procedures for fresh milk and fresh milk-based product procurement and distribution, program funding and implementation, create demand for milk from the local dairy industry and farmers, private sector participation, are formulated and developed;
6. Coordinate with the LGUs on the social preparation and implementation phase of the program;

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7. Closely monitor the fund management, utilization, program implementation and respond to operational concerns of the regional and local stakeholders;
 8. Consolidate reports and submit monthly accomplishment and financial report on the utilization of funds and quarterly accomplishment on the implementation of the program to PMB.

B. RESPONSIBILITIES OF THE LGU-CDCs:

The B/C/M CDCs shall:

Milk Feeding Program

1. Social Preparation:
 - a. Prepare and submit the masterlist of child beneficiaries; identification of beneficiaries as well as assessment of children with lactose intolerance;
 - b. Submit report to Field Office on the data of children identified as lactose intolerant for proper management;
 - c. Orientation of parents/caregivers/guardian and children beneficiaries;
 - d. Conduct of height and weight measurement of the beneficiaries before the onset of the milk feeding or the latest Operation Timbang Plus (OPT) result and/or utilize the DOH alternatives strategies defined in their guidelines
 - e. Ensure availability of clean and well-ventilated storage for the fresh milk that will meet the standards set by the proper authorities;
2. Implementation Phase:
 - a. Conduct of pre-feeding and monthly weighing of the beneficiaries to determine if there is an improvement of weight;
 - b. Conduct of Parenting Effectiveness Service (PES)/parenting sessions to parents/caregivers/guardians;
 - c. Ensure safe delivery of fresh milk to children beneficiaries;
 - d. Implement the actual conduct of milk feeding in the CDC/SNP;
 - e. Records the height and weight of the children beneficiaries;
 - f. Submit reports including the Nutritional Status Report to the Field Office after 60 Feeding Days and after 120 Feeding Days;
 - g. Utilization of the ECCD Information system as a reporting mechanism for the program implementation;

C. ACCOUNTABILITY

The agreement shall be implemented as agreed upon in accordance with the terms and conditions stipulated herein. Failure on the part of any party to comply with the provisions of this Agreement will warrant its discontinuance and give rise to filing of appropriate administrative and/or criminal actions against responsible officers and employees of the Erring party.

D. APPLICABLE GUIDELINES

This Program implementation and herein MOU shall be implemented in accordance with the provision of DSWD Memorandum Circular No. 29, series of 2020 (Guidelines in the Implementation of the Milk Feeding Program along with the Supplementary Feeding Program), and DSWD Memorandum Circular No. 03, series of 2019 (Revised Procedures on the Implementation of the Supplementary Feeding Program based on Amended Administrative Order No. 04, series of 2016).

E. EFFECTIVITY

This Memorandum of Understanding shall take effect upon signing of the parties hereto and shall remain valid and existing until revoked or terminated by their mutual consent.

IN WITNESS WHEREOF, the parties hereby affix their signature this _____ day of _____, 2025 at _____.

**DEPARTMENT OF SOCIAL WELFARE
AND DEVELOPMENT**

MUNICIPALITY OF PRIETO DIAZ

NORMAN S. LAURIO
Regional Director

ROMEO D. DOMASIAN
Municipal Mayor

SIGNED IN THE PRESENCE OF:

VICTORIA C. TAGUM
Chief- Protective Services Division

C/MSWD Officer

ACKNOWLEDGEMENT

Republic of the Philippines)
Municipal/City of _____
X- ----- X

NAME	GOVERNMENT ISSUED ID	DATE / PLACE ISSUED
NORMAN S. LAURIO		
ROMEO D. DOMASIAN		

BEFORE ME, this ____ day of _____, 2025, personally appeared the above-named persons who executed the foregoing Memorandum of Understanding consisting of five (5) pages signed on all pages, including this page on which this acknowledgement is written and acknowledged the same to be their own free and voluntary act and deed.

WITNESS MY HAND AND SEAL on the date place first above-written, this ____ day of _____, 2025 at _____, Philippines.

Notary Public

Doc. No. _____
Page No. _____
Book No. _____
Series No. 2025.